

**Judge Mosbarger – Law & Motion – Wednesday, May 20, 2026 @ 9:00 AM
TENTATIVE RULINGS**

1. 21CV02281 SUSAN EIDSON AND AMY BAIRD, SUCCESSOR TRUSTEES OF THE NIXON FAMILY TRUST V. TESTATE AND INTESTATE SUCCESSORS OF THE HARRY G MCKEEN, AND EVALYN I MCKEEN ET AL

EVENT: Motion for Substitution of Party Plaintiff

The Motion for Substitution of Party Plaintiff is granted, and the Court will sign the form of order submitted.

2. 22CV02594 MOFFITT, DEREK C ET AL V. MOFFITT, TERESA L ET AL

EVENT: Plaintiffs' Motion to Compel Teresa L. Moffitt to Produce Documents Described in Deposition Notice and for Sanctions

The Objections to Reply Evidence submitted by Derek and Sandi Moffitt are overruled. *Code of Civil Procedure* §2025.480 provides that the deadline for filing a Motion to Compel is “60 days after the completion of the record of the deposition.” Here, the deposition is not complete because the parties have mutually agreed that the deposition of Teresa Moffitt will be done in one to four two-hour sessions in one ongoing deposition. As such, the Court deems this Motion timely. Additionally, the Court finds that the meet and confer efforts of the parties to be sufficient. As to the merits of the Motion, the Court finds that Plaintiffs have sufficiently established good cause for the Requests, the objections largely lack merit, and the Motion is granted, in part. Teresa Moffitt is ordered to produce the documents requested in the deposition notice, limited to non-confidential, non-privileged, and non-expert related documents (see Request Nos. 3-4), and any such documents can be withheld with the submission of a privilege log. No response is required for Request No. 180, which the Court finds to be overbroad and unduly burdensome. Plaintiffs’ request for sanctions is granted. Sanctions are awarded in favor of Plaintiffs and against Defendant Teresa Moffitt and her counsel of record in the amount of \$2,500, which are to be paid within 30 days’ notice of this ruling. Counsel for the Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

3. 22CV02761 BRANCH, BRANDON ET AL V. ARTHUR, LINDBERG, III

EVENT: Motion for Terminating Sanctions and Attorney Fees

Defendant’s Motion for Terminating Sanctions and Attorney Fees is granted in part. While the Court is not inclined to grant terminating, sanctions based on this record (see, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093), the Court does award further monetary sanctions in the amount of \$800, against Plaintiffs Brandon Brach, Lacy Branch, and Beau Branch, a minor, which is to be paid within 14 days’ notice of the Court’s order, with the previously ordered responses to discovery. Defendant shall submit a revised form of order consistent with this ruling within two weeks.

4. 23CV01025 HARO, OSCAR V. GENERAL MOTORS, LLC

EVENT: Defendant General Motors LLC's Motion for Summary Judgment; or in the Alternative Summary Adjudication

Defendant General Motors LLC ("Defendant" herein) has met its burden to show that Plaintiff Oscar Haro's claims fail as a matter of law. *Code of Civil Procedure* §437c(p)(2); *Cummins, Inc. v. Superior Court* (2005) 36 Cal.5th 478; *Daugherty v. American Honda Motor Co.* (2006) 144 Cal.App.4th 824; Undisputed Material Fact No. 2; Declaration of Xylong Quezada at ¶3, and Exhibit A attached thereto; Declaration of Bryan Jensen at ¶¶4 and 6, and Exhibits A and C thereto; and Declaration of Gregory Yu at ¶1, and Exhibit 1 thereto. Specifically, the Court finds that Defendant has produced evidence showing the 2017 GMC Sierra 1500, VIN: 3GTU2NEC2HG367968 ("Subject Vehicle" herein), was purchased in Nampa, Idaho. Undisputed Material Fact No. 2; Declaration of Xylong Quezada at ¶3, and Exhibit A attached thereto; Declaration of Bryan Jensen at ¶¶4 and 6, and Exhibits A and C thereto; and Declaration of Gregory Yu at ¶1, and Exhibit 1 thereto. Therefore, Defendant has shown that the Subject Vehicle was not purchased in California and thus would not be covered under the Song Beverly Act.

The burden having shifted, the Court finds that Plaintiff has failed to meet his burden to raise a triable issue of fact, and Plaintiff's own evidence submitted in opposition to the motion further supports Defendant's position that the Subject Vehicle was purchased outside of California. Plaintiff also argues that the government interest test must be applied, but this argument is not persuasive. Defendant does not request that the Court apply non-California law to Plaintiff's claims. Rather, Defendant argues that the Song Beverly Act does not encompass claims arising from vehicles purchased outside of California. The Court agrees.

As to the Magnuson-Moss Warranty Act Claim, the Court finds that the California Court of Appeal's decision in *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824 is controlling, and because Plaintiff cannot state an independent claim under the Magnuson-Moss Warranty Act without their Song-Beverly state law claims, Plaintiff's claim under the Magnuson-Moss Warranty Act must necessarily fail.

Defendant General Motors LLC's Motion for Summary Judgment is granted in its entirety. The Court vacates the Mandatory Settlement Conference on July 27, 2026, the Trial Readiness Conference on July 30, 2026, and the Jury Trial on August 3, 2026, and sets this matter for a Status Hearing on June 24, 2026 at 10:30 a.m. for status of judgment and dismissal.

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